

ODSB/SCS/A-1/2026/R1

17 March 2026

Master SaaS Agreement

A. Definitions & Interpretation

A1. Definitions

1. In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below:
 - (a) **“Agreement”** means this Master SaaS Agreement together with all Schedules, Service Orders, and any documents expressly incorporated by reference.
 - (b) **“Applicable Laws”** means all applicable laws, regulations, regulatory requirements, guidelines, and directives in Brunei Darussalam, including those issued by Brunei Darussalam Central Bank (“BDCB”), and any other relevant Regulatory Authority.
 - (c) **“Business Day”** means a day other than a Saturday, Sunday, or public holiday in Brunei Darussalam.
 - (d) **“Change”** means any modification, enhancement, upgrade, patch, configuration change, or release affecting the Services, the Olive Platform, or supporting infrastructure.
 - (e) **“Client”** means any customer subscribing to the Services under this Agreement, as identified in the relevant Service Order.
 - (f) **“Client Data”** means all data, including Personal Data, customer information, transaction data, and any other data processed, stored, or transmitted through the Services on behalf of the Client.
 - (g) **“Confidential Information”** means all non-public information disclosed by one Party to the other Party, whether in written, oral, electronic, or any other form, including business, financial, technical, operational, customer, and platform-related information, and any information that ought reasonably to be regarded as confidential.
 - (h) **“Data Protection Laws”** means all applicable laws, regulations, and regulatory requirements relating to the protection of Personal Data, privacy and data security in Brunei Darussalam, including the Personal Data Protection Order, 2025 (PDPO).
 - (i) **“Effective Date”** means the date on which this Agreement is executed by both Parties or such other date as may be specified in this Agreement.

- (j) **"Fees"** means all charges payable by the Client for the Services, including subscription fees, usage-based fees, implementation fees, and any other charges specified in the applicable Service Order or Pricing Schedule.
- (k) **"Incident"** means any event or circumstance that disrupts, degrades, or compromises the availability, performance, security, or integrity of the Services or Client Data.
- (l) **"Intellectual Property Rights"** means all intellectual property rights of any nature, including copyrights, trademarks, patents, trade secrets, database rights, and any other proprietary rights, whether registered or unregistered.
- (m) **"Maintenance"** means scheduled or unscheduled activities performed by ODSB to maintain, update, patch, or support the Services or underlying infrastructure.
- (n) **"Olive Platform"** means the digital platform ecosystem developed, owned, and operated by ODSB, including software applications, infrastructure, and supporting systems delivered on a SaaS basis.
- (o) **"ODSB"** means Olive Digital Sdn Bhd.
- (p) **"Outsourcing Arrangement"** means any arrangement whereby the Client engages ODSB to perform operational or technology-related functions, where such classification is required under Applicable Laws.
- (q) **"Personal Data"** means any data or information relating to an identified or identifiable individual.
- (r) **"Regulatory Authority"** means any governmental, regulatory, supervisory, or statutory authority having jurisdiction over either Party, including BDCB.
- (s) **"Software-as-a-Service" or "SaaS"** means a service model in which software applications are hosted and managed by ODSB and provided to the Client on a subscription basis.
- (t) **"Schedules"** means the schedules attached to this Agreement, as amended from time to time, including the Service Level Agreement, Pricing Schedule, and any Addendum.
- (u) **"Service Catalogue"** means the document maintained by ODSB describing the Services, modules, features, and capabilities available through the Olive Platform.
- (v) **"Service Levels"** means the service performance standards set out in the Service Level Agreement or relevant Schedule.

- (w) **“Service Order”** means a document executed between the Parties specifying the Services subscribed to, applicable Fees, and any service-specific terms.
- (x) **“Services”** means the SaaS services provided by ODSB to the Client through the Olive Platform, as defined in the Service Catalogue and applicable Service Orders.
- (y) **“Subcontractor”** means any third party engaged by ODSB to perform any part of the Services.
- (z) **“Term”** means the duration of this Agreement as specified in Clause [•], unless earlier terminated in accordance with this Agreement.

A2. Interpretation

2. In this Agreement, unless the context otherwise requires:

- (a) words importing the singular shall include the plural and vice versa;
- (b) references to a “person” include any individual, company, corporation, partnership, or other legal entity;
- (c) references to “including” or “includes” shall be deemed to be followed by the words “without limitation”;
- (d) references to any law or regulation shall include any amendment, re-enactment, or replacement thereof;
- (e) headings are for convenience only and shall not affect the interpretation of this Agreement;
- (f) references to Clauses and Schedules are references to clauses of and schedules to this Agreement;
- (g) in the event of any inconsistency between documents forming part of this Agreement, the order of precedence shall be as follows:
 - (a) this Master SaaS Agreement;
 - (b) the Service Order;
 - (c) the Service Catalogue; and
 - (d) the Pricing Schedule;
- (h) this Agreement shall be interpreted in a manner consistent with Applicable Laws, including requirements relating to data protection, cybersecurity, outsourcing (where applicable), and

financial services regulation.

B. Scope of Services

B1. Appointment and Nature of Services

3. The Client hereby appoints ODSB, and ODSB agrees, to provide the Services to the Client on a Software-as-a-Service (SaaS) basis through the Olive Platform, subject to the terms and conditions of this Agreement.
4. The Services shall be provided as standardised SaaS offerings and shall be defined and governed by:
 - (a) the Service Catalogue; and
 - (b) the applicable Service Orders executed between the Parties.
5. The Services shall be provided on a hosted basis, whereby ODSB retains responsibility for the operation, maintenance, and management of the underlying platform infrastructure.

B2. Service Catalogue

6. The Services available under this Agreement shall be as described in the Service Catalogue maintained by ODSB and made available through a designated document repository or official communication channel.
7. The Service Catalogue shall:
 - (a) define the service modules, platform capabilities, and functional scope of the Services; and
 - (b) serve as the primary reference for identifying Services available for subscription by the Client.
8. ODSB may update the Service Catalogue from time to time as part of its ongoing platform development and service evolution.
9. Any material changes affecting the Client's subscribed Services shall be:
 - (a) notified to the Client; and
 - (b) managed in accordance with the Change Management provisions of this Agreement.

B3. Service Orders

10. The Client may subscribe to specific Services by executing one or more Service Orders with ODSB.
11. Each Service Order shall specify:
 - (a) the Services subscribed to;
 - (b) applicable Fees and pricing model in accordance with the Pricing Schedule;
 - (c) usage parameters or service volumes, where applicable; and
 - (d) any service-specific terms or requirements.
12. Each Service Order shall form an integral part of this Agreement.

B4. SaaS Delivery Model

13. The Services shall be delivered on a non-exclusive, subscription-based SaaS model.
14. The Client shall be granted access to the Olive Platform and subscribed Services without acquiring any ownership of the underlying software, infrastructure, or Intellectual Property Rights.
15. The Services are delivered through a multi-tenant platform architecture, under which platform resources may be shared across multiple clients or, where applicable, deployed in logically segregated or dedicated environments (including isolated or bare metal infrastructure), as determined by ODSB's service delivery model.
16. In all cases, ODSB shall ensure:
 - (a) strict logical segregation of Client Data;
 - (b) appropriate security and access controls; and
 - (c) effective data isolation,commensurate with the nature of the Services and Applicable Laws.
17. ODSB shall be responsible for:
 - (a) hosting and operating the Olive Platform;
 - (b) platform maintenance, upgrades, and enhancements;

- (c) system monitoring and operational support; and
- (d) implementation of baseline cybersecurity controls in accordance with its internal security standards.

18. For the avoidance of doubt:

- (a) ODSB retains full control over platform architecture, infrastructure, and service delivery model; and
- (b) nothing in this Agreement shall require ODSB to customise or alter the core platform in a manner that adversely affects its multi-tenant operations or other clients.

B5. Independent SaaS Nature

19. The Parties acknowledge that the Services are provided as standardised SaaS offerings.

20. Nothing in this Agreement shall:

- (a) create exclusivity in favour of the Client; or
- (b) restrict ODSB from providing similar services to other clients.

21. ODSB shall not be required to:

- (a) provide dedicated infrastructure unless expressly agreed in a Service Order; or
- (b) grant access to platform components, configurations, or data relating to other clients.

B6. Compliance with Applicable Laws

22. ODSB shall provide the Services in compliance with Applicable Laws.

B7. Exclusions

23. Unless expressly agreed in writing, the Services shall not include:

- (a) custom development outside standardised platform modules;
- (b) third-party services not integrated into the Olive Platform; or
- (c) any services not specified in the Service Catalogue or a valid Service Order.

24. Any additional services requested by the Client shall be subject to a separate Service Order, which shall specify the applicable Fees and timelines.

B8. Changes to Services

25. ODSB may introduce enhancements, upgrades, or modifications to the Olive Platform in the ordinary course of business.
26. Any material changes that may impact the Client's use of the Services shall:
- (a) be notified to the Client in advance, where reasonably practicable, including details of the nature, scope, and expected impact of such changes; and
 - (b) be managed in accordance with the Change Management provisions of this Agreement.
27. For the avoidance of doubt:
- (a) ODSB retains control over platform-level changes and releases; and
 - (b) client-specific changes or customisations shall be subject to mutual agreement and, where applicable, a separate Service Order.

C. Service Orders & Subscription Model

C1. Service Level Commitment

28. ODSB shall provide the Services in accordance with the Service Levels set out in the Service Level Agreement ("SLA") attached as a Schedule to this Agreement.
29. ODSB shall perform the Services:
- (a) with due skill, care, and diligence; and
 - (b) in accordance with generally accepted industry practices applicable to SaaS service providers, taking into account recognised standards and frameworks as appropriate to the nature, scale, and risk profile of the Services.
30. The SLA shall form an integral part of this Agreement and shall be binding on the Parties.

C2. Availability and Performance

31. ODSB shall use reasonable endeavours to ensure that the Services meet the availability and performance standards specified in the SLA.
32. Availability shall be measured in accordance with the methodology defined in the SLA, including any exclusions for:
 - (a) scheduled maintenance; and
 - (b) events outside ODSB's reasonable control.
33. ODSB shall implement appropriate monitoring tools and controls to track system performance and availability.

C3. Incident Management

34. ODSB shall establish and maintain an incident management framework to address service disruptions, system failures, and security incidents affecting the Services.
35. Incidents shall be classified in accordance with severity levels defined in the SLA.
36. ODSB shall:
 - (a) detect, classify, respond to, and resolve incidents in accordance with the SLA; and
 - (b) provide the Client with updates on incident status and resolution in accordance with the SLA.
37. For material or high-severity incidents, ODSB shall:
 - (a) notify the Client without undue delay upon becoming aware of such incident;
 - (b) provide relevant updates on progress and mitigation; and
 - (c) provide a root cause analysis and corrective actions within a reasonable timeframe following resolution.

C4. Service Monitoring and Reporting

38. ODSB shall monitor the performance of the Services against the Service Levels on an ongoing basis.

39. ODSB shall provide periodic service performance reports to the Client in accordance with the SLA, which may include:
- (a) availability metrics;
 - (b) incident statistics;
 - (c) response and resolution performance; and
 - (d) any Service Level breaches.
40. The Client may review such reports for the purpose of monitoring service performance.

C5. Service Level Breach and Remedies

41. In the event of any failure to meet the Service Levels, ODSB shall:
- (a) investigate the cause of the failure;
 - (b) take corrective action to restore service performance; and
 - (c) implement measures to prevent recurrence.
42. Where specified in the SLA, service credits or other remedies may apply.
43. Unless otherwise expressly stated, such remedies shall constitute the Client's sole financial remedy for Service Level failures.
44. Repeated or material breaches of Service Levels may constitute a material breach of this Agreement.

C6. Maintenance and Planned Downtime

45. ODSB may perform scheduled maintenance on the Olive Platform from time to time.
46. (b) ODSB shall:
- (a) provide advance notice of planned maintenance in accordance with the SLA; and
 - (b) use reasonable endeavours to minimise disruption to the Services.
47. Planned maintenance shall, where practicable, be conducted during agreed maintenance windows and may be excluded from availability calculations as defined in the SLA.

C7. Continuous Improvement

48. ODSB may introduce enhancements, upgrades, or optimisation measures to the Services in the ordinary course of business.
49. ODSB shall use reasonable efforts to ensure that such changes do not materially degrade the agreed Service Levels.

C8. Compliance with Applicable Laws

50. ODSB shall perform the Services in accordance with Applicable Laws.

D. Fees & Payment Terms

D1. Fees

51. The Client shall pay ODSB the Fees for the Services in accordance with this Agreement, the applicable Service Order, and the Pricing Schedule.
52. The Fees shall be determined based on the Services subscribed and may comprise one or more of the following components:
 - (a) subscription fees for access to the Olive Platform and subscribed Services;
 - (b) usage-based fees calculated based on actual consumption of Services;
 - (c) integration or implementation fees for onboarding and system setup;
 - (d) fees for change requests, enhancements, or additional development; and
 - (e) fees for consulting, advisory, or other professional services, where applicable.
53. The applicable Fees, pricing model, and charging units shall be specified in the relevant Service Order.

D2. Billing and Invoicing

54. ODSB shall invoice the Client in accordance with the billing frequency specified in the applicable Service Order.
55. Subscription fees may be billed on a periodic basis, including annually or at such other intervals as agreed between the Parties.
56. Usage-based fees shall be billed based on system-generated usage metrics recorded by the Olive Platform.
57. All invoices shall include sufficient summary details to enable the Client to reasonably verify the charges.

D3. Payment Terms

58. The Client shall pay all undisputed invoices within 14 days from the date of invoice, unless otherwise agreed in writing.
59. Payments shall be made in the currency specified in the relevant Service Order and shall be exclusive of all applicable taxes, duties, or levies.
60. Where the Client disputes any portion of an invoice, the Client shall:
 - (a) notify ODSB in writing within a reasonable period; and
 - (b) pay the undisputed portion of the invoice in accordance with this Clause.
61. The Parties shall use reasonable efforts to resolve any billing disputes in a timely manner.
62. Any undisputed amount not paid when due may, at ODSB's discretion, be subject to a late payment charge at a reasonable rate specified in the Pricing Schedule or Service Order.
63. The Client shall not be entitled to set off or withhold any payments due under this Agreement, except to the extent of undisputed amounts agreed between the Parties.

D4. Pricing Adjustments

64. ODSB may revise the Pricing Schedule on each anniversary of the Agreement to reflect changes in inflation and other relevant commercial factors.
65. Unless otherwise agreed in writing:
 - (a) such revisions shall not apply during the term of an existing Service Order; and
 - (b) revised Fees shall apply upon renewal or execution of a new Service Order.
66. ODSB shall provide reasonable prior notice of any such revisions.

D5. Additional Services

67. Any Services not included in an existing Service Order, including additional modules, enhancements, or change requests, shall be subject to separate agreement between the Parties.
68. Such Services shall be documented through a new or amended Service Order, including applicable Fees and timelines.

D6. Taxes

69. All Fees are exclusive of any applicable taxes, duties, or levies unless otherwise stated.
70. The Client shall be responsible for the payment of any applicable taxes imposed on the Services in accordance with Applicable Laws.

D7. Financial Records and Verification

71. ODSB shall maintain records sufficient to support invoiced Fees, including system-generated usage data where applicable.
72. The Client may, upon reasonable prior notice, request clarification of invoiced amounts based on:
 - (a) invoices; and
 - (b) relevant usage or service reports provided by ODSB.

73. ODSB shall not be required to:
- (a) disclose internal cost structures;
 - (b) provide access to financial records unrelated to the Client; or
 - (c) permit inspection of its books or systems,
- except where required under Applicable Laws or expressly agreed in writing.
74. ODSB may satisfy such verification requirements by providing system-generated usage reports or independent audit or assurance reports, where applicable.

E. Service Levels (SLA)

E1. Service Level Agreement

75. ODSB shall provide the Services in accordance with the service levels and performance standards set out in the Service Level Agreement (“SLA”) attached as a Schedule to this Agreement.
76. The SLA shall define, among others:
- (a) system availability and uptime targets;
 - (b) incident classification and severity levels;
 - (c) response and resolution timeframes;
 - (d) maintenance windows and planned downtime; and
 - (e) service reporting requirements.
77. The SLA shall form an integral part of this Agreement and shall be binding on the Parties.

E2. Service Performance

78. ODSB shall perform the Services:
- (a) with due skill, care, and diligence; and

- (b) in accordance with generally accepted industry practices applicable to SaaS service providers, taking into account recognised standards and frameworks as appropriate to the nature, scale, and risk profile of the Services.

79. ODSB shall implement and maintain systems, processes, and controls reasonably necessary to support compliance with the SLA.

E3. Monitoring and Reporting

80. ODSB shall monitor the performance of the Services against the Service Levels set out in the SLA.

81. ODSB shall provide service performance reports to the Client in accordance with the SLA, which may include:

- (a) availability and performance metrics;
- (b) incident and service disruption summaries; and
- (c) response and resolution performance.

82. Such reports shall be provided in a format reasonably determined by ODSB and sufficient to demonstrate performance against the SLA.

E4. Incident Management

83. ODSB shall establish and maintain an incident management framework to detect, classify, respond to, and resolve incidents affecting the Services.

84. ODSB shall:

- (a) respond to incidents within the timelines specified in the SLA;
- (b) take reasonable steps to restore the Services; and
- (c) provide updates to the Client in accordance with the SLA.

85. For material or high-severity incidents, ODSB shall:

- (a) notify the Client without undue delay;
- (b) provide updates on status and mitigation; and

- (c) provide a root cause analysis and corrective actions within a reasonable timeframe following resolution.

86. ODSB shall maintain records of material incidents in accordance with its internal processes.

E5. Service Level Breach

87. In the event of any failure to meet the Service Levels, ODSB shall:

- (a) investigate the cause of the failure; and
- (b) take reasonable steps to restore service performance.

88. Where specified in the SLA, service credits or other remedies may apply.

89. Unless otherwise expressly stated, such remedies shall constitute the Client's sole financial remedy for Service Level failures.

90. Persistent or material breaches of Service Levels may constitute a material breach of this Agreement.

E6. Maintenance and Downtime

91. ODSB may perform planned maintenance of the Olive Platform from time to time.

92. ODSB shall:

- (a) provide prior notice of planned maintenance in accordance with the SLA; and
- (b) use reasonable endeavours to minimise disruption to the Services.

93. Planned maintenance shall, where specified in the SLA:

- (a) be conducted during defined maintenance windows; and
- (b) be excluded from availability calculations.

E7. Continuous Improvement

94. ODSB may implement upgrades, enhancements, or optimisation measures to the Services in the ordinary course of business.

95. ODSB shall use reasonable efforts to ensure that such changes do not materially degrade the agreed Service Levels.

E8. Compliance with Applicable Laws

96. ODSB shall perform the Services in accordance with Applicable Laws.

F. Roles and Responsibilities

F1. Responsibilities of ODSB

97. ODSB shall provide the Services in accordance with this Agreement, the applicable Service Orders, and the SLA.
98. Without limitation to the foregoing, ODSB shall:
- (a) operate, manage, and maintain the Olive Platform, including the underlying infrastructure, systems, and applications supporting the Services;
 - (b) use reasonable endeavours to ensure the availability, performance, and reliability of the Services in accordance with the SLA;
 - (c) implement and maintain appropriate platform-level security controls designed to protect the Services and data processed within the Services;
 - (d) perform maintenance, upgrades, and enhancements necessary for the continued operation and improvement of the Services;
 - (e) establish and maintain incident management, support, and operational processes in accordance with the SLA;
 - (f) provide technical and operational support to the Client in relation to the Services;
 - (g) comply with Applicable Laws in the provision of the Services;
 - (h) ensure that its personnel and any Subcontractors engaged in the provision of the Services are appropriately qualified and competent; and

- (i) remain responsible for the performance of the Services, including Services performed by its Subcontractors.

99. For the avoidance of doubt, ODSB provides the Services on a standardised SaaS basis and shall not be responsible for the Client's internal operations, controls, or regulatory obligations.

F2. Responsibilities of Client

100. The Client shall use the Services in accordance with this Agreement and Applicable Laws.

101. Without limitation to the foregoing, the Client shall:

- (a) conduct user acceptance testing for any Services, configurations, integrations, or changes prior to production use, and confirm acceptance of such Services in accordance with agreed acceptance criteria;
- (b) ensure that its internal policies, procedures, and standard operating procedures are developed, implemented, and maintained to support the effective use of the Services within its organisation;
- (c) be responsible for the operationalisation of the Services within its business, including embedding the Services into its workflows, processes, and control environment;
- (d) ensure that its personnel are adequately trained and competent to use the Services in accordance with this Agreement and Applicable Laws;
- (e) validate that any configurations, parameters, workflows, or business rules applied within the Services are appropriate for its operational and regulatory requirements;
- (f) perform appropriate internal testing, verification, and approval prior to go-live or use of any new functionality, enhancement, or integration;
- (g) be responsible for ensuring that its use of the Services aligns with its internal governance, risk management, and compliance frameworks;
- (h) maintain appropriate user access management, including user provisioning, access controls, and the confidentiality of user credentials;
- (i) obtain and maintain all necessary regulatory approvals, licences, consents, and clearances required for its use of the Services and for the conduct of its business activities, including any

approvals required from Regulatory Authorities, and ensure ongoing compliance with such requirements;

- (j) ensure that its use of the Services complies with this Agreement and Applicable Laws, including any legal or regulatory obligations applicable to its business;
- (k) promptly notify ODSB of any issues, incidents, security breaches, suspected unauthorised use of the Services, or any regulatory restriction or directive that may affect the use of the Services;
- (l) cooperate with ODSB in good faith in connection with the provision, support, and improvement of the Services;
- (m) be responsible for the configuration and use of the Services within its environment, including any business rules, workflows, or parameters set by the Client; and
- (n) ensure that its systems, interfaces, and environments connecting to the Services meet any minimum technical and security requirements notified by ODSB.

F3. Shared Responsibilities

102. The Parties acknowledge that effective delivery of the Services requires cooperation and timely communication.

103. The Parties shall:

- (a) act in good faith in the performance of their respective obligations;
- (b) maintain appropriate communication and escalation channels for operational matters;
- (c) participate in periodic service review discussions, where applicable; and
- (d) cooperate in the investigation and resolution of service-related issues.

104. Neither Party shall be responsible for any failure or delay to the extent caused by the other Party's failure to perform its obligations under this Agreement.

F4. Independent Responsibilities

105. Each Party shall remain independently responsible for:

- (a) its own business operations;

- (b) its own books, records, and record-keeping obligations;
- (c) its own compliance with Applicable Laws; and
- (d) its own internal governance, risk management, and control frameworks.

106. Nothing in this Agreement shall be construed as transferring regulatory, legal, or operational responsibility from one Party to the other.

F5. Key Contacts and Governance

107. Each Party shall designate and maintain appropriate contact persons responsible for:

- (a) operational coordination;
- (b) incident escalation; and
- (c) contract management.

108. The Parties may establish and maintain a governance framework appropriate to the nature, scale, and criticality of the Services, which may include:

- (a) periodic service review meetings to assess performance, service levels, and ongoing service improvements;
- (b) defined escalation procedures for material service issues, incidents, or disputes;
- (c) a change management process governing the submission, assessment, approval, and implementation of change requests Service Order; and
- (d) user acceptance testing procedures to validate and confirm acceptance of new services, enhancements, configurations, or changes prior to production use.

109. Such governance arrangements are intended to facilitate communication and service oversight and shall not create any partnership, joint venture, or agency relationship between the Parties.

110. Each Party shall ensure that such contact persons are suitably authorised, competent, and available to perform their respective roles.

111. The details of such contact persons shall be set out in Schedule [X] (Key Contacts), as may be updated from time to time in accordance with this Agreement.

G. Data Protection & Confidentiality

G1. Data Ownership

112. As between the Parties, all rights, title, and interest in and to any data submitted to or processed through the Services by or on behalf of the Client (“Client Data”) shall remain with the Client.
113. Nothing in this Agreement shall confer on ODSB any rights in the Client Data, except for the limited, non-exclusive right to process such data solely for the purpose of providing the Services in accordance with this Agreement.

G2. Allocation of Responsibilities

114. Each Party shall comply with Applicable Laws in relation to data protection and privacy.
115. As between the Parties:
- (a) the Client shall be responsible for the legality, accuracy, and integrity of Client Data, including ensuring that it has all necessary rights, consents, and authorisations to provide such data for processing; and
 - (b) ODSB shall process Client Data only as necessary to provide the Services and in accordance with this Agreement.
116. Nothing in this Agreement shall be construed as transferring responsibility for the Client’s data governance, regulatory obligations, or legal compliance to ODSB.

G3. Data Protection Measures

117. ODSB shall implement and maintain reasonable technical and organisational measures designed to protect Client Data against unauthorised or unlawful processing, accidental loss, destruction, or damage.
118. Such measures shall:
- (a) be aligned with generally accepted industry practices applicable to SaaS service providers, taking into account recognised standards, as appropriate; and

(b) be proportionate to the nature, scale, and risk profile of the Services.

119. ODSB shall ensure that access to Client Data is restricted to authorised personnel on a need-to-know basis and that such personnel are subject to appropriate confidentiality obligations.

G4. Data Security

120. ODSB shall maintain an information security framework designed to safeguard the Services and Client Data.

121. Such framework may include, where appropriate:

- (a) encryption of Personal Data (including PII) in transit and at rest;
- (b) access controls, identity and access management mechanisms, and user authentication controls for systems processing Personal Data;
- (c) system monitoring, logging, and audit trail capabilities to detect, investigate, and respond to security events; and
- (d) periodic security assessments, including vulnerability scanning, penetration testing, and remediation management.

122. ODSB shall use reasonable efforts to remediate identified security vulnerabilities in a timely manner, taking into account risk and operational impact.

G5. Security Incidents

123. ODSB shall notify the Client without undue delay upon becoming aware of a material security incident affecting Client Data.

124. Such notification shall include, to the extent reasonably available:

- (a) a description of the nature of the incident; and
- (b) steps taken or proposed to mitigate its impact.

125. ODSB shall take reasonable steps to contain and remediate the incident.

126. Each Party shall be responsible for its own compliance with any notification or reporting obligations under Applicable Laws.

G6. Data Retention and Deletion

127. ODSB shall retain Client Data only for as long as necessary to provide the Services or as required under Applicable Laws.
128. Upon termination or expiry of this Agreement, ODSB shall:
- (a) make Client Data available for retrieval by the Client in accordance with this Agreement; and
 - (b) thereafter delete or render inaccessible such data within a reasonable period, unless retention is required under Applicable Laws.
129. Deletion shall be performed using methods appropriate to the nature of the data and systems involved.

G7. Data Location and Transfers

130. Client Data shall be hosted, processed, and stored only in the locations specified in this Agreement or the relevant Service Order.
131. ODSB shall not transfer, permit access to, or process Client Data outside the approved jurisdictions without the Client's prior written consent. ODSB shall implement appropriate safeguards to protect Client Data in accordance with Applicable Laws.

G8. Confidentiality

132. Each Party shall keep confidential all Confidential Information received from the other Party and shall not disclose such information except:
- (a) as required to perform its obligations under this Agreement; or
 - (b) as required by Applicable Laws.
133. Confidential Information shall not include information that:
- (a) is publicly available other than through a breach;

- (b) was lawfully obtained without restriction; or
- (c) is independently developed without reference to such information.

G9. Regulatory Access

134. Nothing in this Agreement shall prevent either Party from complying with obligations under Applicable Laws, including providing information to a Regulatory Authority.
135. To the extent permitted by law, the Party receiving such request shall notify the other Party.

G10. Audit and Compliance

136. ODSB shall maintain controls and records reasonably necessary to demonstrate compliance with this Section.
137. Upon reasonable request, ODSB may provide:
- (a) relevant summaries of its data protection and security controls; or
 - (b) independent audit or assurance reports, where available.
138. ODSB shall not be required to:
- (a) disclose confidential internal security information; or
 - (b) permit unrestricted access to its systems,
- except where required under Applicable Laws or expressly agreed between the Parties.

H. Information Security & Cybersecurity

H1. Security Governance

139. ODSB shall establish, implement, and maintain an information security and cybersecurity framework governing the provision of the Services.
140. Such framework shall:
- (a) be based on a risk-based approach;

- (b) be aligned with generally accepted industry practices applicable to SaaS service providers, taking into account recognised standards and regulatory guidelines (including the BDCB Technology Risk Management Guidelines), as appropriate; and
- (c) be proportionate to the nature, scale, complexity, and risk profile of the Services.
- (d) be proportionate to the nature, scale, complexity, and risk profile of the Services, and be subject to periodic review and update.

141. ODSB shall be responsible for the design, implementation, and operation of its security framework.

H2. Security Controls

142. ODSB shall implement and maintain reasonable technical and organisational security controls designed to protect the Services against unauthorised access, disruption, or compromise.

143. Such controls may include, where appropriate:

- (a) identity and access management controls, including role-based access and least privilege principles;
- (b) authentication mechanisms for system access;
- (c) encryption of data in transit and at rest;
- (d) network security controls, including segmentation and monitoring;
- (e) system hardening and secure configuration; and
- (f) logging and monitoring of security-relevant events.

144. ODSB shall determine the specific controls implemented, having regard to industry practices and operational requirements.

H3. Security Monitoring and Threat Management

145. ODSB shall maintain monitoring capabilities designed to detect security events, vulnerabilities, and anomalous activities affecting the Services.

146. ODSB shall:

- (a) monitor systems and infrastructure supporting the Services; and

- (b) take reasonable steps to investigate and respond to identified security events.

147. Security monitoring shall be conducted in accordance with ODSB's internal policies and risk management practices.

H4. Vulnerability Management and Security Testing

148. ODSB shall maintain a vulnerability management process designed to identify and address security weaknesses affecting the Services.

149. Such process may include:

- (a) vulnerability assessments;
- (b) security testing; and
- (c) patch management.

150. ODSB shall prioritise remediation of vulnerabilities based on risk severity and operational considerations.

H5. Cybersecurity Incident Management and Regulatory Reporting

151. ODSB shall maintain a cybersecurity incident response process as part of its overall incident management framework.

152. In the event of a material cybersecurity incident affecting the Services, ODSB shall:

- (a) take reasonable steps to contain and mitigate the incident;
- (b) notify the Client without undue delay; and
- (c) provide relevant updates on the status of the incident in accordance with its incident management processes.

153. Each Party shall be responsible for its own regulatory and legal obligations arising from such incidents.

H6. Access and Identity Management

154. ODSB shall implement access control measures to restrict access to systems supporting the Services to authorised personnel only.
155. ODSB shall:
- (a) manage access rights based on role and business need; and
 - (b) take reasonable steps to revoke or adjust access where no longer required.
156. The Client shall be responsible for managing access rights of its users to the Services.

H7. Subcontractor Security

157. Where ODSB engages Subcontractors in connection with the provision of the Services, ODSB shall take reasonable steps to ensure that such Subcontractors implement security measures appropriate to the nature of the services provided.
158. ODSB shall remain responsible for the performance of the Services.

H8. Business Continuity and Resilience

159. ODSB shall maintain business continuity and disaster recovery capabilities appropriate to the Services.
160. Such capabilities shall be designed to support the recovery and continuation of the Services following a disruption.
161. Details of recovery objectives and arrangements shall be set out in the relevant Schedule, where applicable.

H9. Security Assurance

162. ODSB may perform periodic internal or external assessments of its information security controls.
163. Upon reasonable request, ODSB may provide the Client with:

- (a) summaries of its security controls; or
- (b) relevant audit or assurance reports, where available.

164. ODSB shall not be required to disclose sensitive security information that could compromise the security of the Services.

H10. Regulatory Compliance

165. Each Party shall be responsible for its own compliance with Applicable Laws relating to cybersecurity and information security.
166. Nothing in this Agreement shall be construed as transferring regulatory responsibility from one Party to the other.

H11. Continuous Improvement

167. ODSB may review and enhance its security controls and practices from time to time in response to:
- (a) evolving threats;
 - (b) technological developments; and
 - (c) changes in industry practices.
168. Any material changes to security controls that may impact the Services shall be communicated to Client in advance where practicable.

I. Audit & Regulatory Access

I1. Audit Rights of the Client

169. ODSB shall maintain records, controls, and documentation reasonably necessary to demonstrate its compliance with this Agreement.
170. The Client may, upon reasonable prior notice, request information reasonably required to verify ODSB's compliance with:

- (a) the Services;
- (b) the Service Levels; and
- (c) applicable obligations under this Agreement.

171. Such verification shall be conducted through:

- (a) review of reports, summaries, and documentation provided by ODSB; or
- (b) independent audit or assurance reports, where available.

172. ODSB shall not be required to:

- (a) provide access to its systems, source code, or infrastructure;
- (b) disclose confidential information relating to other clients; or
- (c) permit on-site audits,

except where required under Applicable Laws or expressly agreed between the Parties.

I2. Regulatory Access

173. Nothing in this Agreement shall prevent ODSB from complying with Applicable Laws, including providing access, information, or assistance to a Regulatory Authority.

174. Where required under Applicable Laws, ODSB shall:

- (a) provide access to relevant information relating to the Services; and
- (b) cooperate with any lawful request from a Regulatory Authority.

To the extent permitted by law, ODSB shall notify the Client of any such request.

I3. Access to Client Data

175. ODSB shall ensure that the Client has access to its Client Data in accordance with this Agreement.

176. Such access shall be provided through:

- (a) the Services; or
- (b) data export or retrieval mechanisms made available by ODSB.

177. ODSB shall not exercise any lien or restriction that prevents the Client from accessing its Client Data, except where required under Applicable Laws.

14. Audit Support and Cooperation

178. ODSB shall provide reasonable cooperation in relation to audit or verification activities permitted under this Agreement.

179. Such cooperation may include:

- (a) provision of relevant documentation and reports; and
- (b) clarification of controls and processes relating to the Services.

180. Any such activities shall:

- (a) be limited to the scope necessary to verify compliance; and
- (b) be conducted in a manner that does not unreasonably disrupt ODSB's operations or compromise the security of the Services.

15. Frequency and Scope

181. Any audit or verification activities shall:

- (a) be conducted no more than once in any twelve (12)-month period, unless required under Applicable Laws; and
- (b) be limited to matters directly relevant to the Services provided to the Client.

16. Third-Party Assurance

182. ODSB may satisfy audit or verification requirements by providing:

- (a) independent audit reports;
- (b) security certifications; or
- (c) third-party assurance reports,

where available.

183. Such reports may be provided in summary form, subject to confidentiality and security considerations.

17. Confidentiality of Audit Information

184. All information obtained through audit or verification activities shall be treated as Confidential Information and used solely for the purposes of:

- (a) verifying compliance with this Agreement; and
- (b) fulfilling Applicable Laws.

18. Confidentiality of Audit Information

185. Nothing in this Section shall require ODSB to:

- (a) disclose proprietary or commercially sensitive information;
- (b) provide access to systems, environments, or data unrelated to the Client; or
- (c) take any action that would compromise the security, integrity, or availability of the Services.

19. Survival

186. The provisions of this Section shall survive the termination or expiry of this Agreement to the extent necessary to give effect to their purpose.

J. Service Governance, Subcontracting & Regulatory Alignment

J1. Independent Service Model

187. The Parties acknowledge that the Services are provided on a Software-as-a-Service (SaaS) basis.

188. Each Party shall remain independently responsible for:

- (a) its own business operations; and
- (b) its compliance with Applicable Laws.

189. Nothing in this Agreement shall be construed as creating control, oversight, or management of one Party's operations by the other.

J2. Regulatory Alignment

190. Each Party shall comply with Applicable Laws in connection with this Agreement.

191. Where the Client is subject to regulatory requirements, the Client shall be responsible for:

- (a) determining its regulatory obligations; and
- (b) ensuring its use of the Services complies with Applicable Laws.

192. ODSB shall provide reasonable cooperation, upon request, to the extent necessary to support the Client's compliance with Applicable Laws, provided that such cooperation:

- (a) does not impose material operational burden on ODSB; and
- (b) does not require disclosure of confidential or proprietary information.

J3. Service Governance

193. The Parties may establish governance arrangements appropriate to the Services, which may include:

- (i) periodic service review meetings;
- (ii) performance and service reporting; and
- (iii) escalation procedures for material service issues.

194. Such governance arrangements are intended for coordination and communication and shall not constitute control or supervision of ODSB's operations.

J4. Subcontracting

195. ODSB may engage Subcontractors in connection with the provision of the Services.

196. ODSB shall:

- (a) remain responsible for the performance of the Services; and
- (b) ensure that Subcontractors are subject to obligations appropriate to the nature of the Services.

197. ODSB shall maintain appropriate oversight of its Subcontractors in accordance with its internal risk management practices.

J5. Material Subcontractors

198. ODSB shall notify the Client of any Subcontractor that performs a material part of the Services.

199. Where a Subcontractor is reasonably expected to have a material impact on:

- (a) service delivery;
- (b) security; or
- (c) Client Data,

ODSB shall, upon reasonable request, provide relevant information relating to such Subcontractor.

200. The Client may raise reasonable objections on grounds relating to:

- (a) security; or
- (b) compliance with Applicable Laws.

201. The Parties shall discuss such concerns in good faith.

J6. Subcontracting Controls

202. ODSB shall take reasonable steps to ensure that Subcontractors:

- (a) are suitably qualified and capable; and
- (b) implement security and data protection measures appropriate to the Services.

203. ODSB shall not be required to impose obligations on Subcontractors that are inconsistent with its standard SaaS operating model.

J7. Subcontractor Changes

204. ODSB may update or replace Subcontractors in the ordinary course of business.

205. Where such change is material, ODSB shall provide reasonable notice to the Client.

J8. Risk Management

206. ODSB shall maintain internal risk management and control frameworks appropriate to the provision of the Services.
207. Such frameworks shall be:
- (a) risk-based; and
 - (b) aligned with generally accepted industry practices.
208. ODSB shall manage risks relating to:
- (a) service delivery;
 - (b) information security; and
 - (c) third-party dependencies.

J9. Material Events

209. ODSB shall notify the Client of any material event that significantly impacts:
- (a) the availability of the Services; or
 - (b) the security of Client Data.

J10. Records

210. ODSB shall maintain records reasonably necessary to support the provision of the Services and demonstrate compliance with this Agreement.
211. Such records shall be:
- (a) retained in accordance with Applicable Laws; and
 - (b) made available in accordance with Section I (Audit & Regulatory Access).

J11. Regulatory Access

212. Nothing in this Agreement shall prevent ODSB from complying with Applicable Laws, including providing information to a Regulatory Authority.

213. ODSB shall not be required to:

- (a) grant unrestricted access to its systems or premises; or
 - (b) disclose information unrelated to the Client,
- except where required under Applicable Laws.

J12. Exit and Substitutability

214. The Services shall be capable of transition in accordance with this Agreement.

215. ODSB shall provide reasonable cooperation in connection with:

- (a) transition planning; and
- (b) service handover,
- (c) as further set out in the Exit Management provisions.

J13. Conflicts of Interest

216. Each Party shall take reasonable steps to identify and manage any material conflicts of interest arising in connection with this Agreement.

J14. Continuous Compliance

217. Each Party shall monitor its compliance with Applicable Laws in relation to this Agreement.

218. ODSB shall notify the Client of any material changes that may significantly affect its ability to provide the Services.

K. Business Continuity & Disaster Recovery

K1. Business Continuity Framework

219. ODSB shall establish and maintain a business continuity and disaster recovery framework designed to support the resilience and continuity of the Services.

220. Such framework shall:

- (a) adopt a risk-based approach;
- (b) be aligned with generally accepted industry practices applicable to SaaS service providers;
and
- (c) be proportionate to the nature, scale, and risk profile of the Services.

221. ODSB shall be responsible for the design, implementation, and operation of its business continuity arrangements.

K2. Disaster Recovery Capabilities

222. ODSB shall maintain disaster recovery and system resilience capabilities appropriate to the Services.

223. Such capabilities shall include, where applicable:

- (a) data backup and recovery processes;
- (b) redundancy and failover mechanisms;
- (c) recovery environments, including geographically separated environments where appropriate;
and
- (d) measures to ensure data integrity, consistency, and completeness during recovery.

224. Recovery capabilities shall be designed to enable restoration of the Services within the applicable recovery objectives, including recovery time objectives (RTO) and recovery point objectives (RPO), where such objectives are defined in the SLA or relevant Schedules.

K3. Testing and Validation

225. ODSB shall perform periodic testing of its business continuity and disaster recovery capabilities at least annually, or at such other frequency as determined based on risk and operational considerations.

226. ODSB shall:

- (a) review test outcomes; and
- (b) implement improvements where reasonably necessary.

227. Upon reasonable request, ODSB may provide summary information relating to such testing.

K4. Incident Response and Recovery

228. In the event of a disruption affecting the Services, ODSB shall:

- (a) take reasonable steps to activate its business continuity and recovery processes; and
- (b) use reasonable endeavours to restore the Services in accordance with the SLA and applicable recovery objectives (if defined).

229. ODSB shall prioritise restoration of the Services based on its operational recovery procedures.

K5. Communication

230. ODSB shall notify the Client without undue delay of any material disruption affecting the Services.

231. Such notification shall include, to the extent reasonably available:

- (a) the nature of the disruption; and
- (b) updates on restoration progress.

232. ODSB shall provide updates in accordance with its incident management processes.

K6. Third-Party Dependencies

233. ODSB may rely on third-party providers and Subcontractors in the provision of the Services.

234. ODSB shall take reasonable steps to manage risks associated with such dependencies in accordance with its internal risk management practices.

235. ODSB shall remain responsible for the overall delivery of the Services and shall take reasonable steps to ensure that third-party dependencies do not materially impair the continuity of the Services.

K7. Continuous Improvement

236. ODSB may review and enhance its business continuity and disaster recovery capabilities from time to time, taking into account:

- (a) operational experience;
- (b) testing outcomes; and
- (c) evolving risks and industry practices.

K8. Compliance with Applicable Laws

237. Each Party shall be responsible for its own compliance with Applicable Laws relating to business continuity and operational resilience.
238. Nothing in this Agreement shall be construed as transferring responsibility for the Client's operational continuity or regulatory obligations to ODSB.

K9. Assurance

239. ODSB may provide, upon reasonable request:
- (a) summaries of its business continuity and disaster recovery arrangements; or
 - (b) relevant assurance or audit reports, where available.
240. ODSB shall not be required to disclose sensitive operational or security information where such disclosure could reasonably be expected to compromise the resilience or security of the Services.

L. Incident Management & Reporting

L1. Incident Management Framework

241. ODSB shall establish, implement, and maintain an incident management framework designed to manage and respond to incidents affecting the Services.
242. Such framework shall:
- (a) adopt a risk-based approach;
 - (b) be aligned with generally accepted industry practices applicable to SaaS service providers and relevant regulatory guidelines (including the BDCB Technology Risk Management Guidelines); and

- (c) be proportionate to the nature, scale, and risk profile of the Services.

243. The framework shall address:

- (a) identification and classification of incidents;
- (b) escalation and response procedures;
- (c) containment, mitigation, and resolution of incidents; and
- (d) closure and post-incident review.

244. ODSB shall manage incidents in accordance with the Service Levels set out in the SLA.

L2. Incident Classification

245. ODSB shall classify incidents based on severity and impact in accordance with the categories defined in the SLA.

246. Such classification shall take into account, where applicable:

- (a) impact on service availability or performance;
- (b) impact on the security, confidentiality, or integrity of the Services or Client Data, including unauthorised access, data breaches, or system compromise; and
- (c) operational impact on the Services.

247. ODSB shall apply appropriate escalation and response procedures based on such classification.

L3. Incident Response and Resolution

248. ODSB shall:

- (a) respond to incidents within the response times specified in the SLA;
- (b) take reasonable steps to contain, mitigate, and prevent further impact arising from incidents; and
- (c) use reasonable endeavours to restore affected Services in accordance with the SLA and applicable recovery objectives (if defined).

249. ODSB shall allocate appropriate resources to manage incidents in accordance with its operational processes.
250. ODSB shall, where reasonably required, cooperate with the Client in relation to incident investigation and remediation.

L4. Incident Notification

251. ODSB shall notify the Client without undue delay, and in accordance with the notification timelines set out in the SLA (where applicable), of any material incident affecting:
- (a) the availability or performance of the Services; or
 - (b) the security, confidentiality, or integrity of the Services or Client Data.
252. Such notification shall include, to the extent reasonably available:
- (a) a description of the incident;
 - (b) the affected Services; and
 - (c) initial mitigation or containment actions taken.

L5. Ongoing Communication

253. ODSB shall provide updates on material incidents in accordance with its incident management processes and the SLA.
254. Such updates may include:
- (a) status of investigation and remediation;
 - (b) actions taken to mitigate impact; and
 - (c) estimated timelines for restoration, where available.

L6. Post-Incident Review

255. For material incidents, ODSB shall perform a post-incident review to:
- (a) identify root causes; and
 - (b) determine and track corrective or preventive actions, where appropriate.

256. ODSB may provide a summary of such findings to the Client upon reasonable request.

L7. Regulatory and Legal Obligations

257. Each Party shall be responsible for its own compliance with Applicable Laws relating to incident reporting and notification.

258. ODSB shall not be responsible for fulfilling the Client's regulatory reporting obligations, except to the extent expressly agreed in writing.

L8. Incident Records

259. ODSB shall maintain records of material incidents in accordance with its internal processes, sufficient to demonstrate compliance with this Section.

260. Upon reasonable request, ODSB may provide relevant summaries of such records, subject to confidentiality and security considerations.

L9. Third-Party Dependencies

261. ODSB may rely on third-party providers and Subcontractors in the provision of the Services.

262. ODSB shall take reasonable steps to manage risks associated with such dependencies in accordance with its internal risk management practices.

263. ODSB shall remain responsible for the overall delivery of the Services and shall take reasonable steps to ensure that third-party dependencies do not materially impair incident response or service restoration.

L10. Continuous Improvement

264. ODSB may review and enhance its incident management processes from time to time, taking into account:

- (a) operational experience;
- (b) incident trends; and

- (c) evolving risks and industry practices.

L11. Relationship with SLA and Security Provisions

265. This Section shall be read together with:

- (a) the SLA; and
- (b) the information security provisions of this Agreement.

266. In the event of inconsistency, the SLA shall prevail in relation to response and resolution timelines.

M. Change Management

M1. Change Management Framework

267. ODSB shall establish, implement, and maintain a change management framework governing changes to the Services, the Olive Platform, and supporting infrastructure.

268. Such framework shall:

- (a) adopt a risk-based approach;
- (b) ensure appropriate risk and impact assessment prior to implementation;
- (c) require testing and validation of changes prior to deployment;
- (d) require testing and validation of changes prior to deployment;
- (e) support controlled implementation to minimise disruption to the Services.

269. ODSB shall manage its change processes in accordance with its internal operational standards and generally accepted industry practices applicable to SaaS service providers.

M2. Types and Classification of Changes

270. Changes may include, without limitation:

- (a) system upgrades, patches, and enhancements;
- (b) infrastructure or architectural changes;

- (c) configuration updates affecting service functionality;
- (d) security-related updates; and
- (e) changes affecting integrations or dependencies.

271. ODSB may classify changes based on their nature, impact, and urgency, including standard, normal, and emergency changes, in accordance with its internal processes.

M3. Platform Changes and Client Notification

272. ODSB shall have the right to implement changes to the Services and the Olive Platform in the ordinary course of business.

273. ODSB shall provide reasonable prior notice of material changes that are expected to:

- (a) materially affect the functionality of subscribed Services; or
- (b) materially impact the Client's use of the Services.

274. For the avoidance of doubt:

- (a) Client approval shall not be required for platform-level changes; and
- (b) ODSB retains full control over the design, development, and evolution of the Services.

M4. Client-Specific Changes

275. Any Client-specific change requests, including:

- (a) custom configurations;
- (b) integrations; or
- (c) enhancements outside standard functionality,

shall be subject to mutual agreement between the Parties, including scope, timelines, and Fees, as documented in a Service Order or change request.

M5. Testing and Deployment

276. ODSB shall ensure that changes are appropriately tested prior to deployment in accordance with its internal processes.

277. ODSB may implement changes into production environments once such changes have been validated through its internal controls.

278. ODSB may implement changes into production environments once such changes have been validated through its internal controls.

M6. Implementation and Communication

279. ODSB shall implement changes in a controlled manner.

280. Where reasonably practicable, ODSB shall:

- (a) provide advance notice of planned changes that may impact service availability; and
- (b) schedule such changes within maintenance windows or periods of reduced usage.

M7. Emergency Changes

281. ODSB may implement emergency changes without prior notice where necessary to:

- (a) address security vulnerabilities;
- (b) respond to incidents; or
- (c) prevent or mitigate material service disruption.

282. ODSB shall notify the Client of such changes as soon as reasonably practicable following implementation.

M8. Change Records

283. ODSB shall maintain records of material changes in accordance with its internal operational and audit requirements, sufficient to demonstrate compliance with this Section.

284. Upon reasonable request, ODSB may provide summaries of material changes relevant to the Client, subject to confidentiality and security considerations.

M9. Service Level Impact

285. ODSB shall use reasonable efforts to ensure that changes do not materially degrade the Service Levels.
286. Where a change is expected to materially impact service availability or performance, such impact shall be managed in accordance with the SLA, including applicable maintenance windows and exclusions.

M10. Continuous Improvement

287. ODSB may continuously enhance and improve the Services, including through:
- (a) feature enhancements;
 - (b) performance optimisation; and
 - (c) security improvements.
288. Such enhancements form part of the SaaS delivery model and shall not require Client approval unless otherwise expressly agreed in writing.

M11. Regulatory Compliance

289. Each Party shall remain responsible for its own compliance with Applicable Laws.
290. ODSB shall implement changes in a manner consistent with Applicable Laws applicable to its provision of the Services.

N. Intellectual Property

N1. Ownership of Intellectual Property

291. All Intellectual Property Rights in and to the Olive Platform, including all software, systems, architecture, designs, algorithms, documentation, and related materials, shall remain the sole and exclusive property of ODSB or its licensors.

292. Nothing in this Agreement shall operate to transfer any Intellectual Property Rights from ODSB to the Client, except as expressly provided.

N2. Licence to Use the Services

293. Subject to the terms of this Agreement and payment of applicable Fees, ODSB grants the Client a limited, non-exclusive, non-transferable, and non-sublicensable licence during the Term to access and use the Services solely for its internal business purposes.

294. The licence granted under this Clause is a right to access and use the Services and does not constitute a transfer of ownership or any licence to the underlying software, source code, or platform.

295. Client shall not:

- (a) copy, reproduce, modify, adapt, or create derivative works of the Services;
- (b) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of the Services, except to the extent permitted by Applicable Laws;
- (c) access or use the Services for the purpose of developing or supporting a competing product or service; or
- (d) use the Services for any unlawful or unauthorised purpose.

296. The Client shall ensure that its authorised users comply with the terms of this Agreement.

N3. Client Data

297. All rights, title, and interest in and to the Client's data, including Personal Data and customer information, shall remain vested in the Client.

298. ODSB shall have no ownership rights in such data and shall only access, process, store, or transmit such data as necessary to provide the Services in accordance with this Agreement.

N4. Enhancements and Developments

299. Unless otherwise expressly agreed in writing, all Intellectual Property Rights in any enhancements, modifications, or developments to the Olive Platform made in the course of providing the Services shall vest solely in ODSB.
300. Where the Client commissions specific developments outside the standard Services, the Parties may agree in the relevant Service Order on:
- (a) ownership of such developments; or
 - (b) a licence granting the Client rights to use such developments.
301. For the avoidance of doubt:
- (a) ODSB retains all Intellectual Property Rights in the underlying platform, frameworks, tools, and reusable components; and
 - (b) ODSB shall be entitled to reuse general knowledge, skills, experience, and know-how acquired in the course of providing the Services, and to develop similar or competing functionalities for other clients, provided that no Client Confidential Information is disclosed.

N5. Feedback

302. The Client may provide feedback, suggestions, or recommendations relating to the Services.
303. ODSB shall be entitled to use such feedback without restriction and without obligation to the Client, provided that such use does not disclose the Client's Confidential Information.

N6. Third-Party Intellectual Property

304. The Services may incorporate third-party software, tools, or components.
305. ODSB shall ensure that it has the necessary rights to use such components in the provision of the Services.
306. The Client shall comply with any applicable third-party licence terms notified by ODSB, to the extent such terms are relevant to the Client's use of the Services.

N7. Protection of the Services

307. The Client shall:

- (a) take reasonable steps to prevent unauthorised access to or use of the Services; and
- (b) promptly notify ODSB of any unauthorised use, suspected misuse, or infringement relating to the Services.

N8. Intellectual Property Infringement

308. ODSB shall defend the Client against any third-party claim that the Services, as provided by ODSB, infringe Intellectual Property Rights, and shall indemnify the Client against any final damages awarded by a court of competent jurisdiction or agreed settlement amounts, subject to the following conditions:

- (a) the Client promptly notifies ODSB of the claim;
- (b) ODSB has sole control of the defence and settlement of the claim; and
- (c) the Client provides reasonable cooperation to ODSB.

309. This Clause shall not apply to any claim arising from:

- a) use of the Services in combination with products or services not provided by ODSB;
- b) modifications made by or on behalf of the Client; or
- c) use of the Services in breach of this Agreement.

310. If the Services are, or are likely to become, subject to an infringement claim, ODSB may, at its option:

- a) procure the right for the Client to continue using the Services;
- b) modify or replace the Services to avoid infringement; or
- c) modify or replace the Services to avoid infringement; or

N9. Survival

311. The provisions of this Section shall survive termination or expiry of this Agreement.

O. Term & Termination

O1. Term

312. This Agreement shall commence on the Effective Date and shall continue for an initial term of [•] years (“Initial Term”), unless earlier terminated in accordance with this Agreement.
313. Upon expiry of the Initial Term, this Agreement shall automatically renew for successive renewal terms of [•] years (each a “Renewal Term”), unless either Party provides written notice of non-renewal at least [•] months prior to the expiry of the then-current term.

O2. Termination for Convenience

314. Either Party may terminate this Agreement for convenience by giving not less than [•] months’ prior written notice to the other Party.
315. Termination for convenience shall:
- (a) not affect any rights, obligations, or liabilities accrued prior to the effective date of termination; and
 - (b) be subject to the implementation of any agreed transition arrangements, where applicable.

O3. Termination for Cause

316. Either Party may terminate this Agreement with immediate effect by written notice if the other Party:
- (a) commits a material breach of this Agreement and fails to remedy such breach within [•] days after receipt of written notice;
 - (b) commits repeated breaches which, taken together, materially affect the provision or use of the Services; or
 - (c) is unable to perform its material obligations under this Agreement.

O4. Regulatory Termination

317. The Client may terminate this Agreement, in whole or in part, where such termination is required by Applicable Laws or directed by a Regulatory Authority.
318. Where reasonably practicable, the Client shall:
- (a) provide prior written notice to ODSB; and
 - (b) consult with ODSB in good faith regarding the implementation of such termination.
319. ODSB shall cooperate with the Client to give effect to such termination in a commercially reasonable manner.

O5. Insolvency

320. Either Party may terminate this Agreement with immediate effect by written notice if the other Party:
- (a) becomes insolvent or unable to pay its debts as they fall due;
 - (b) enters into liquidation, administration, receivership, or any similar insolvency or restructuring proceedings; or
 - (c) ceases, or threatens to cease, to carry on its business in the ordinary course.

O6. Suspension of Services

321. ODSB may suspend the Services, in whole or in part, where:
- (a) the Client fails to pay undisputed Fees when due;
 - (b) such suspension is required to comply with Applicable Laws or regulatory requirements; or
 - (c) suspension is reasonably necessary to protect the security, integrity, or availability of the Services or the Olive Platform.
322. Where reasonably practicable, ODSB shall provide prior notice of such suspension.
323. ODSB shall use reasonable efforts to:
- (a) minimise disruption to the Client; and
 - (b) restore the Services promptly once the cause of suspension has been resolved.

07. Effect of Termination

324. Upon termination or expiry of this Agreement:

- (a) the Client's right to access and use the Services shall cease, subject to any agreed transition period;
- (b) all outstanding Fees and other amounts due shall become immediately payable; and
- (c) each Party shall comply with the applicable provisions of this Agreement relating to exit, data return, confidentiality, and other surviving obligations.

325. Termination or expiry shall not affect any rights, remedies, or liabilities accrued prior to the effective date of termination.

08. Exit Assistance and Transition

326. Upon termination or expiry of this Agreement, ODSB shall provide reasonable assistance to facilitate an orderly transition of the Services.

327. Such assistance may include:

- (a) provision of Client Data in accordance with this Agreement;
- (b) reasonable cooperation with transition activities; and
- (c) continued provision of the Services during an agreed transition period.

328. Unless otherwise expressly agreed in writing:

- (a) such assistance shall be subject to additional Fees at ODSB's then-current rates; and
- (b) such assistance shall be subject to additional Fees at ODSB's then-current rates; and

329. ODSB shall not be required to:

- (a) provide indefinite support; or
- (b) undertake material development, customisation, or reconfiguration outside the scope of the Services.

O9. Survival

330. Any provisions which by their nature are intended to survive termination or expiry of this Agreement shall remain in full force and effect, including provisions relating to:

- (a) data protection and confidentiality;
- (b) intellectual property;
- (c) audit and regulatory access; and
- (d) liability and indemnity.

P. Exit Management

P1. Exit Approach

331. The Parties acknowledge that, upon termination or expiry of this Agreement, the Services may be transitioned in an orderly manner.

332. ODSB shall maintain reasonable processes to support:

- (a) the extraction and return of Client Data; and
- (b) the orderly disengagement of the Services.

333. For the avoidance of doubt:

- (a) ODSB shall not be required to maintain a bespoke or client-specific exit plan unless otherwise expressly agreed in writing; and
- (b) exit arrangements shall be proportionate to the nature, scale, and complexity of the Services provided.

P2. Exit Assistance

334. Upon termination or expiry of this Agreement, ODSB shall provide reasonable assistance to facilitate an orderly transition of the Services.

335. Such assistance may include:

- (a) provision of Client Data in accordance with this Agreement;
- (b) reasonable cooperation with transition activities; and
- (c) continued provision of the Services during an agreed transition period.

336. Unless otherwise expressly agreed in writing:

- (a) such assistance shall be subject to additional Fees at ODSB's then-current rates; and
- (b) the scope and duration of such assistance shall be commercially reasonable and limited.

337. ODSB shall not be required to:

- (a) provide indefinite support;
- (b) undertake material development, reconfiguration, or custom integration outside the scope of the Services; or
- (c) support or assume responsibility for the internal implementation of replacement systems.

P3. Data Return and Portability

338. ODSB shall make available the Client's data in a structured, commonly used, and machine-readable format.

339. ODSB shall:

- (a) provide access to Client Data during the Term and any agreed transition period; and
- (b) enable extraction of such data using standard tools or agreed mechanisms.

340. ODSB shall not impose unreasonable technical restrictions that would prevent data portability, subject to security, confidentiality, and system integrity requirements.

P4. Data Deletion

341. Following termination or expiry of this Agreement and completion of any agreed transition period, ODSB shall delete Client Data in accordance with this Agreement, except where retention is required by Applicable Laws.

342. Upon reasonable request, ODSB may provide confirmation of such deletion.

P5. Transition Period

343. Where agreed between the Parties, ODSB may continue to provide the Services for a limited transition period following termination or expiry.

344. During such transition period:

- (a) the Services shall continue to be provided on the terms of this Agreement; and
- (b) applicable Fees shall continue to apply.

345. ODSB shall use reasonable efforts to maintain Service Levels during such period, subject to the nature of the transition activities being performed.

P6. Cooperation

346. Each Party shall cooperate in good faith to facilitate an orderly transition.

347. Each Party shall cooperate in good faith to facilitate an orderly transition.

- (a) intentionally obstruct the transition; or
- (b) withhold Client Data contrary to this Agreement.

348. The Client acknowledges that:

- (a) successful transition depends on its own planning, resources, and third-party arrangements;
and
- (b) ODSB does not guarantee seamless migration to any alternative system or service provider.

P7. Exit Triggers

349. The exit plan shall be activated upon:

- (a) termination or expiry of this Agreement;
- (b) a material breach by ODSB;
- (c) regulatory direction requiring termination or transition; or

- (d) any event that materially affects ODSB's ability to provide the Services.

P8. Exit Costs

350. Exit assistance shall be provided on a chargeable basis unless otherwise expressly agreed.

351. Fees for exit assistance shall be:

- (a) based on ODSB's then-current rates; or
- (b) as specified in the relevant Service Order or Pricing Schedule.

P9. Audit and Oversight of Exit

352. Any review of exit activities shall be conducted in accordance with the audit provisions of this Agreement.

353. ODSB shall provide reasonable cooperation in relation to such reviews, subject to:

- (a) confidentiality obligations; and
- (b) protection of its systems, security, and the interests of other clients.

P10. Regulatory Direction

354. Each Party shall remain responsible for its own compliance with Applicable Laws in relation to termination and transition.

355. ODSB shall cooperate with reasonable requests necessary to support such compliance, provided that such cooperation:

- (a) does not impose a disproportionate burden on ODSB; and
- (b) is consistent with the terms of this Agreement.

P11. Survival

356. The provisions of this Section shall survive termination or expiry of this Agreement to the extent necessary to complete agreed transition and exit activities.

Q. Data Return & Destruction

Q1. Data Return

357. Upon termination or expiry of this Agreement, and subject to any agreed transition period, ODSB shall make available to the Client its Client Data in a structured, commonly used, and machine-readable format using ODSB's standard export tools, interfaces, or other agreed mechanisms.
358. ODSB shall use reasonable efforts to ensure that the Client Data made available is materially complete and accessible, subject to:
- (a) the functionality of the Services;
 - (b) the format in which such Client Data is maintained by ODSB; and
 - (c) any limitations arising from Applicable Laws or third-party systems not controlled by ODSB.
359. ODSB shall provide reasonable cooperation to facilitate data transfer and validation, provided that:
- (a) such cooperation is limited to the scope of the Services and ODSB's standard processes; and
 - (b) any additional migration, transformation, mapping, reconciliation, or implementation support shall be subject to additional Fees at ODSB's then-current rates, unless otherwise agreed in writing.
360. ODSB shall not unreasonably withhold or delay return of Client Data, except where:
- (a) retention is required by Applicable Laws; or
 - (b) the requested format, method, or timing falls outside the scope of ODSB's standard export capabilities and the Parties have not agreed additional services.

Q2. Data Accessibility

361. During the Term, ODSB shall provide the Client with access to Client Data through the Services and any standard export or retrieval functionality made available by ODSB.
362. ODSB shall not impose unreasonable technical restrictions that materially prevent the Client from accessing or retrieving its Client Data in accordance with this Agreement.
363. Nothing in this Clause shall require ODSB to:

- (a) provide unrestricted system-level access;
- (b) disclose source code, proprietary schemas, platform logic, or internal tooling; or
- (c) provide access in a manner that compromises the security, integrity, or availability of the Services.

Q3. Data Deletion

364. Following termination or expiry of this Agreement and completion of any agreed transition period, ODSB shall delete or render inaccessible Client Data in its possession or control within a reasonable period, and in any event within [30/60] days, except to the extent retention is required by Applicable Laws.
365. Data deletion shall be performed using methods appropriate to the nature of the data and systems involved.

Q4. Retention Requirements

366. Where ODSB is required by Applicable Laws to retain Client Data after termination or expiry:
- (a) such retained data shall continue to be protected in accordance with this Agreement for so long as it is retained;
 - (b) ODSB shall not use such retained data for any purpose other than compliance with Applicable Laws; and
 - (c) ODSB shall delete or render such retained data inaccessible once the relevant retention requirement ceases to apply.

Q5. Confirmation of Deletion

367. Upon reasonable request, ODSB may provide written confirmation that Client Data has been deleted or rendered inaccessible in accordance with this Agreement, subject to any lawful retention requirements.

Q6. Subcontractors

368. ODSB shall take reasonable steps to ensure that any Subcontractor engaged in the processing or storage of Client Data complies with obligations appropriate to the Services and consistent with this Agreement.
369. ODSB shall remain responsible for the performance of the Services, including compliance with this Section by its Subcontractors.

Q7. Data Portability

370. ODSB shall not apply unreasonable proprietary restrictions that materially hinder the Client's ability to export its Client Data using the standard export functionality or agreed mechanisms made available under this Agreement.
371. Nothing in this Agreement shall require ODSB to provide Client Data in a format that:
- (a) discloses proprietary architecture, platform logic, or internal data models; or
 - (b) requires ODSB to create bespoke extraction tools, adapters, or integration layers unless separately agreed in writing.

Q8. Timing and Coordination

372. The Parties shall cooperate in good faith to coordinate the timing of data return and deletion, taking into account:
- (i) any agreed transition period;
 - (ii) the Client's retrieval of Client Data; and
 - (iii) ODSB's operational processes and lawful retention obligations.

Q9. Audit and Verification

373. Any review of ODSB's compliance with this Section shall be conducted in accordance with Section I (Audit & Regulatory Access).

374. ODSB may satisfy verification requirements by providing summaries, confirmations, or relevant assurance materials, subject to confidentiality and security considerations.

Q10. Survival

375. The obligations under this Section shall survive termination or expiry of this Agreement to the extent necessary to give effect to their purpose.

R. Location of Service & Data

R1. Location of Service Delivery

376. ODSB shall provide the Services from locations determined by ODSB in accordance with its service delivery model and Applicable Laws.

377. ODSB shall ensure that service delivery locations used by ODSB for the provision of the Services are reasonably suitable for the secure and resilient delivery of the Services.

R2. Data Storage and Processing Locations

378. ODSB shall ensure that the primary storage and processing locations for Client Data are those specified in this Agreement, the applicable Schedule, or otherwise notified to the Client.

379. Unless otherwise agreed in writing, primary storage and processing of Client Data shall occur within Brunei Darussalam.

R3. Cross-Border Transfers

380. ODSB shall not transfer or permit active processing of Client Data outside Brunei Darussalam except:

- (a) as expressly agreed in writing by the Client; or
- (b) where required by Applicable Laws.

381. Where cross-border transfer or access is permitted, ODSB shall implement reasonable contractual, organisational, and technical safeguards designed to protect Client Data in accordance with Applicable Laws, including any applicable data protection or banking secrecy requirements.

R4. Backup and Disaster Recovery Locations

382. The Parties acknowledge that backup, failover, or disaster recovery arrangements may involve infrastructure outside Brunei Darussalam where expressly agreed or permitted under this Agreement, provided that appropriate security safeguards are maintained.

R5. Notification of Material Location Changes

383. ODSB shall provide reasonable prior notice of any material change to:

- (a) any primary data storage or processing location; or
- (b) any material service delivery location,

where such change is reasonably likely to materially affect the Services, security, or compliance with Applicable Laws.

R6. Subcontractor Locations

384. ODSB shall take reasonable steps to ensure that any Subcontractor location used in connection with the Services complies with the requirements of this Agreement and Applicable Laws applicable to ODSB.

R7. Data Residency and Sovereignty

385. ODSB shall implement reasonable safeguards to support compliance with agreed data residency requirements and to protect Client Data against unauthorised access or disclosure.

386. Nothing in this Agreement shall be construed as requiring ODSB to guarantee that Client Data will never become subject to any lawful governmental or regulatory request, provided that ODSB responds to such requests in accordance with Applicable Laws and Section V.

R8. Survival

387. This Section shall survive termination or expiry to the extent necessary to give effect to its purpose.

S. Representation & Warranties

S1. Mutual Representations

388. Each Party represents and warrants to the other that:

- (a) it is duly incorporated or otherwise validly existing under the laws of its jurisdiction;
- (b) it has full power and authority to enter into and perform this Agreement;
- (c) the execution and performance of this Agreement do not violate any Applicable Laws or any binding obligation applicable to it; and
- (d) this Agreement constitutes a valid and binding obligation enforceable against it in accordance with its terms, subject to applicable laws relating to insolvency, equitable remedies, and general principles of law.

S2. Representations and Warranties of ODSB

389. ODSB represents and warrants that:

- (a) it has the necessary expertise, resources, and authority to provide the Services in accordance with this Agreement;
- (b) it shall provide the Services with due skill, care, and diligence and in accordance with generally accepted industry practices applicable to SaaS service providers, taking into account recognised standards and frameworks, as appropriate to the nature, scale, and risk profile of the Services;
- (c) it shall comply with Applicable Laws applicable to its provision of the Services;
- (d) it has obtained and shall maintain any material licences, approvals, and consents required for its provision of the Services; and
- (e) to the best of its knowledge, the Services as provided by ODSB do not infringe any third-party Intellectual Property Rights.

390. ODSB does not warrant that:

- (a) the Services will be uninterrupted or error-free at all times; or
- (b) the Services will meet requirements not expressly set out in this Agreement, the applicable Service Order, or be compatible with third-party systems not provided by ODSB.

S3. Representations and Warranties of the Client

391. The Client represents and warrants that:

- (a) it shall use the Services in accordance with this Agreement and Applicable Laws;
- (b) it has obtained and shall maintain all consents, rights, and authorisations necessary to provide Client Data to ODSB for processing in connection with the Services; and
- (c) its use of the Services, and any data or materials provided by it, shall not infringe the rights of any third party or violate Applicable Laws.

S4. Disclaimer of Additional Warranties

392. Except as expressly set out in this Agreement, the Services are provided on an “as available” and “as configured” basis.

393. To the fullest extent permitted by Applicable Laws, ODSB disclaims all other warranties, representations, conditions, or terms, whether express, implied, statutory, or otherwise, including any implied warranties of merchantability, fitness for a particular purpose, title, non-infringement, uninterrupted availability, or compatibility with third-party systems.

S5. Continuing Representations

394. Each Party’s representations and warranties in this Section shall be deemed repeated throughout the Term only to the extent that they relate to facts and circumstances continuing in nature.

395. Each Party shall notify the other Party if any such representation or warranty becomes materially untrue or misleading.

S6. Survival

396. This Section shall survive termination or expiry to the extent necessary to give effect to its purpose.

T. Liability & Indemnity

T1. General Liability

397. Each Party shall be liable for losses suffered by the other Party arising directly from its breach of this Agreement, negligence, wilful misconduct, or breach of Applicable Laws, subject always to the limitations and exclusions in this Section.

398. ODSB shall be responsible for the acts and omissions of its personnel and Subcontractors in connection with the Services as if they were its own.

T2. Indemnity by ODSB

399. ODSB shall defend the Client against any third-party claim and shall indemnify the Client against final damages awarded by a court of competent jurisdiction or agreed settlement amounts, to the extent arising directly from:

- (a) ODSB's infringement of any third-party Intellectual Property Rights by the Services as provided by ODSB; or
- (b) ODSB's breach of its confidentiality obligations under this Agreement.any breach by ODSB of its obligations under this Agreement;

400. Where the claim relates to infringement, this Clause shall not apply to the extent the claim arises from:

- (a) modifications not made by ODSB;
- (b) combination of the Services with products, services, data, or systems not provided by ODSB;
- (c) use of the Services in breach of this Agreement; or
- (d) Client specifications, instructions, or materials.

T3. Indemnity by the Client

401. The Client shall defend ODSB against any third-party claim and shall indemnify ODSB against final damages awarded by a court of competent jurisdiction or agreed settlement amounts, to the extent arising directly from:

- (a) the Client's breach of this Agreement;
- (b) the Client's unlawful or unauthorised use of the Services; or
- (c) any data, materials, instructions, or specifications provided by the Client that infringe the rights of a third party or violate Applicable Laws.

T4. Limitation of Liability

402. Subject to Clause T5, the total aggregate liability of either Party arising out of or in connection with this Agreement shall not exceed [●] times the total Fees paid or payable under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim.

403. Neither Party shall be liable for any:

- (a) indirect, incidental, consequential, special, exemplary, or punitive damages; or
- (b) loss of profit, loss of revenue, loss of business, loss of anticipated savings, loss of goodwill, or loss of opportunity,

whether in contract, tort, negligence, misrepresentation, restitution, breach of statutory duty, or otherwise, even if advised of the possibility of such loss.

T5. Exclusions from Limitation

404. Nothing in this Agreement shall exclude or limit liability for:

- (a) fraud or fraudulent misrepresentation;
- (b) wilful misconduct;
- (c) death or personal injury caused by negligence, to the extent such liability cannot be excluded under Applicable Laws; or
- (d) any liability which cannot lawfully be excluded or limited.

405. The exclusions in Clause T4 shall not apply to:

- (a) a Party's breach of confidentiality obligations under this Agreement; or
- (b) indemnity obligations under Clauses T2 and T3,

provided that the aggregate liability of ODSB for such matters shall not exceed [•] times the total Fees paid or payable under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, unless otherwise required by Applicable Laws.

T6. Mitigation

406. Each Party shall take reasonable steps to mitigate any loss or damage it suffers in connection with this Agreement.

T7. Claims Procedure

407. A Party seeking indemnification shall:

- (a) promptly notify the indemnifying Party of the claim;
- (b) provide reasonable cooperation at the indemnifying Party's cost; and
- (c) not admit liability or settle the claim without the indemnifying Party's prior written consent, such consent not to be unreasonably withheld or delayed.

408. The indemnifying Party shall have sole control of the defence and settlement of the claim, provided that no settlement may impose non-monetary obligations on the indemnified Party without its prior written consent.

T8. Survival

409. This Section shall survive termination or expiry of this Agreement.

U. Takaful Coverage

U1. Coverage

410. ODSB shall maintain takaful or insurance coverage appropriate to the nature, scale, and risk profile of the Services.

U2. Types of Coverage

411. Such coverage may include, where appropriate and subject to market availability:

- (a) professional indemnity or errors and omissions coverage;
- (b) cybersecurity or data breach coverage; and
- (c) such other coverage as ODSB reasonably determines appropriate to support its business and risk management framework.

U3. Evidence of Coverage

412. Upon reasonable written request, ODSB may provide evidence of such coverage, subject to confidentiality and insurer restrictions.

U4. Subcontractor Coverage

413. ODSB may require Subcontractors to maintain takaful or insurance coverage where ODSB considers such coverage appropriate having regard to the Services performed.

U5. Non-Limitation of Liability

414. The existence of takaful or insurance shall not, of itself, expand or reduce either Party's liability under this Agreement.

U6. Shariah Compliance

415. Where ODSB elects to maintain takaful coverage, ODSB shall use reasonable efforts to ensure that such arrangements are structured in accordance with applicable Shariah principles.

U7. Survival

416. This Section shall survive termination or expiry to the extent necessary to give effect to its purpose.

V. Confidentiality

V1. Confidential Information

417. For the purposes of this Agreement, “Confidential Information” means all non-public information disclosed by one Party (“Disclosing Party”) to the other Party (“Receiving Party”), whether in written, oral, electronic, or any other form, including:

- (a) business, financial, commercial, and operational information;
- (b) technical information, systems, designs, and processes;
- (c) information relating to the Olive Platform and Services;
- (d) customer and transaction information; and
- (e) any information designated as confidential or which by its nature ought reasonably to be regarded as confidential.

V2. Confidentiality Obligations

418. The Receiving Party shall:

- (a) keep Confidential Information confidential;
- (b) use Confidential Information solely for the purposes of performing or receiving the benefit of this Agreement; and
- (c) not disclose Confidential Information to any third party except as permitted by this Agreement.

419. The Receiving Party shall implement reasonable safeguards to protect Confidential Information.

V3. Permitted Disclosures

420. The Receiving Party may disclose Confidential Information:

- (a) to its employees, officers, auditors, advisors, financing providers, insurers, authorised representatives, and Subcontractors on a need-to-know basis, provided such persons are bound by confidentiality obligations no less protective than those in this Agreement; or
- (b) where required by Applicable Laws, court order, stock exchange rule, or Regulatory Authority..

421. To the extent legally permitted, the Receiving Party shall notify the Disclosing Party before making a compelled disclosure.

V4. Protection Measures

422. The Receiving Party shall take reasonable steps to prevent unauthorised access, use, or disclosure of Confidential Information and shall promptly notify the Disclosing Party of any material unauthorised disclosure of which it becomes aware.

V5. Exclusions

423. The obligations of confidentiality shall not apply to information that:

- (a) is or becomes publicly available other than through breach of this Agreement;
- (b) was lawfully in the Receiving Party's possession without restriction before disclosure;
- (c) is independently developed without use of the Confidential Information; or
- (d) is lawfully obtained from a third party without restriction.

V6. Return or Destruction

424. Upon termination or expiry of this Agreement, or upon reasonable request by the Disclosing Party, the Receiving Party shall return or destroy Confidential Information in its possession or control, except to the extent:

- (a) retention is required by Applicable Laws;

- (b) retained copies exist in routine backups, archives, or compliance systems not reasonably capable of selective deletion; or
- (c) retention is necessary to exercise or defend legal rights.

V7. No Rights Granted

425. Nothing in this Agreement grants the Receiving Party any rights, title, or interest in the Confidential Information, except the limited right to use it for the purposes of this Agreement.

V8. Survival

426. The obligations under this Section shall survive termination or expiry of this Agreement for [●] years or, in the case of trade secrets, for so long as such information remains confidential.

V9. Relationship with Data Protection

427. This Section applies in addition to, and not in substitution for, the data protection provisions of this Agreement. In the event of inconsistency, the more specific provision shall prevail in relation to the subject matter concerned.

W. Dispute Resolution & Governing Law

W1. Amicable Resolution

428. The Parties shall use reasonable endeavours to resolve any dispute, controversy, or claim arising out of or in connection with this Agreement (“Dispute”) through good faith discussions.

429. Any discussions or negotiations under this Clause shall be on a without prejudice basis.

430. Either Party may notify the other Party in writing of the Dispute, setting out reasonable details.

W2. Escalation

431. If the Dispute is not resolved at the operational level within [●] Business Days, it shall be escalated to senior management of the Parties, who shall seek to resolve the Dispute within a further [●] Business Days.

W3. Mediation

432. If the Dispute remains unresolved, the Parties may, by mutual agreement, refer the Dispute to mediation before a mutually agreed mediator.

W4. Arbitration

433. Any Dispute not resolved under Clauses W1 to W3 shall be referred to and finally resolved by arbitration.

434. The arbitration shall:

- (a) have its seat in Brunei Darussalam;
- (b) be conducted in accordance with the rules of a recognised arbitration institution agreed by the Parties;
- (c) be conducted in the English language; and
- (d) be determined by a single arbitrator, unless otherwise agreed in writing by the Parties.

435. The award shall be final and binding.

W5. Governing Law

436. This Agreement shall be governed by and construed in accordance with the laws of Brunei Darussalam.

W6. Regulatory Powers

437. Nothing in this Agreement shall restrict the powers of any Regulatory Authority under Applicable Laws.

W7. Continued Performance

438. Pending resolution of any Dispute, the Parties shall continue to perform their respective obligations under this Agreement to the extent reasonably practicable.

W8. Injunctive Relief

439. Nothing in this Section shall prevent either Party from seeking urgent injunctive, interim, or equitable relief from a court of competent jurisdiction.

W9. Survival

440. This Section shall survive termination or expiry of this Agreement.

X. Miscellaneous

X1. Entire Agreement

441. This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior agreements, understandings, negotiations, and discussions relating to that subject matter.

X2. Amendments

442. This Agreement may only be amended by a written instrument signed by authorised representatives of both Parties, except that updates to the Service Catalogue, Pricing Schedule, SLA, and other operational Schedules may be made in accordance with this Agreement.

X3. Assignment

443. Neither Party may assign, transfer, novate, or otherwise dispose of its rights or obligations under this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld, conditioned, or delayed.

444. ODSB may assign or transfer this Agreement, in whole or in part, to:

- (a) an Affiliate; or
- (b) a successor in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of its business or assets relating to the Services,

upon written notice to the Client, provided that such assignment does not materially adversely affect the Client.

445. The Client may assign this Agreement to an Affiliate upon prior written notice to ODSB, provided that such Affiliate has the legal capacity to perform the Client's obligations under this Agreement.

X4. Force Majeure

446. Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent caused by an event beyond its reasonable control, including natural disaster, war, terrorism, civil unrest, epidemic, pandemic, labour disruption, interruption of utilities, large-scale cyber incidents not caused by the affected Party, or network or communications failure not caused by that Party ("Force Majeure Event").

447. The affected Party shall:

- (a) notify the other Party as soon as reasonably practicable; and
- (b) use reasonable efforts to mitigate the impact and resume performance.

448. If a Force Majeure Event continues for more than [•] days and materially affects the Services, either Party may terminate this Agreement on written notice.

X5. Waiver

449. No failure or delay in exercising any right under this Agreement shall constitute a waiver of that right.

X6. Severability

450. If any provision of this Agreement is held invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect, and the Parties shall negotiate in good faith a valid replacement provision that most closely reflects the original intent.

X7. Relationship of the Parties

451. Nothing in this Agreement creates any partnership, joint venture, employment, fiduciary, or agency relationship between the Parties.

452. ODSB acts as an independent service provider.

X8. Notices

453. Any notice under this Agreement shall be in writing and delivered by hand, courier, or electronic mail to the addresses notified by the Parties for that purpose.

454. A notice shall be deemed received:

- (i) if delivered by hand or courier, on delivery; or
- (ii) if sent by email, when successfully transmitted without receipt of a delivery failure notification.

X9. No Third-Party Rights

455. A person who is not a Party to this Agreement shall have no right to enforce any provision of this Agreement, except where expressly stated.

X10. Counterparts

456. This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original and all of which together shall constitute one instrument.

X11. Further Assurance

457. Each Party shall, at its own cost, execute and do such further acts and things as may be reasonably required to give effect to this Agreement.

X12. Survival

458. Any provision of this Agreement which by its nature is intended to survive termination or expiry shall remain in effect after termination or expiry.

Schedules

Schedule 1: Service Catalogue

Schedule 2: Pricing Schedule

Schedule 3: Service Levels Agreement (SLA)

Schedule 4: Key Contacts